

Court No. - 9

Case :- WRIT - C No. - 69735 of 2009

Petitioner :- Mahendradeo Barnwal

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Gopal Srivastava

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Vijay Manohar Sahai,J.

Hon'ble Sudhir Agarwal,J.

We have heard learned counsel for the parties.

Learned counsel for the petitioner has urged that the impugned recovery certificate has been issued against the petitioner without making any provisional assessment or final assessment and without hearing the petitioner. Learned counsel for the respondents pray for and are allowed two weeks' time to file counter affidavit.

List thereafter.

Until further orders of this Court, the impugned recovery proceedings initiated against the petitioner shall remain stayed.

Order Date :- 22.12.2009

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Court No. - 36

Case :- WRIT - C No. - 69735 of 2009

Petitioner :- Mahendradeo Barnwal

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Gopal Srivastava

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Prakash Krishna,J.

Hon'ble Yogesh Chandra Gupta,J.

Respondents have not yet filed any counter affidavit in spite of time granted to them.

The writ petition stands admitted. Three weeks further time is granted to file counter affidavit.

(Prakash Krishna, J.)

(Yogesh Chandra Gupta, J.)

Order Date :- 25.1.2010

LBV

Court No. - 32

Case :- WRIT - C No. - 69735 of 2009

Petitioner :- Mahendradeo Barnwal

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Gopal Srivastava

Counsel for Respondent :- C.S.C.,H.P. Dube

Hon'ble Shashi Kant Gupta,J.

Hon'ble Pankaj Bhatia,J.

Passed over on the illness slip of Sri Gopal Srivastava, learned counsel for the petitioner.

List the matter in the next cause list showing the name of Sri Ravi Anand Agarwal as counsel for the Respondents No. 3 and 4.

Order Date :- 17.4.2019

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Court No. - 32

Case :- WRIT - C No. - 69735 of 2009

Petitioner :- Mahendradeo Barnwal

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Gopal Srivastava

Counsel for Respondent :- C.S.C.,H.P. Dube

Hon'ble Shashi Kant Gupta,J.

Hon'ble Pankaj Bhatia,J.

By order dated 17.04.2019, Office was directed to list the matter in the next cause list showing the name of Sri Ravi Anand Agarwal, as counsel for the Respondents no. 3 and 4.

Despite specific order passed by this Court, the name of Sri Ravi Anand Agarwal, Advocate has not been shown in the cause list as counsel for the Respondents no. 3 and 4. Office to explain as to why the order dated 17.04.2019 has not been complied with.

List the matter in the next cause list, showing the name of Sri Ravi Anand Agarwal as counsel for the Respondents No. 3 and 4.

Order Date :- 24.4.2019

SR

Court No. - 32

Case :- WRIT - C No. - 69735 of 2009

Petitioner :- Mahendradeo Barnwal

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Gopal Srivastava

Counsel for Respondent :- C.S.C.,H.P. Dube

Hon'ble Shashi Kant Gupta,J.

Hon'ble Pankaj Bhatia,J.

By order dated 24.4.2019 , this court had directed the office to the list the matter in the next cause list showing the name of Mr. Ravi Anand Agarwal as counsel for the respondents no. 3 and 4 . But, today, despite specific order the case has been listed without showing his name in the cause list.

The office is directed to submit explanation as to why the name of Mr Ravi Anand Agarwal has not been shown in the cause list.

Let this matter be listed on 15.5.2019 showing the name of Mr. Ravi Anand Agarwal as counsel for the respondents no. 3 and 4.

Order Date :- 8.5.2019

MLK

Court No. - 32

Case :- WRIT - C No. - 69735 of 2009

Petitioner :- Mahendradeo Barnwal

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Gopal Srivastava

Counsel for Respondent :- C.S.C.,H.P. Dube

Hon'ble Shashi Kant Gupta,J.

Hon'ble Pankaj Bhatia,J.

Heard learned counsel for the petitioner and Sri Ravi Anand Agarwal, learned Advocate, appeared on behalf of Electricity Department.

Learned counsel for the petitioner has argued that the impugned recovery certificate has been issued against the petitioner without there being any final assessment made against the petitioner. The petitioner states that an FIR was lodged against him alleging theft of electricity and in this regard Case Crime No. 1056 of 2008 under Sections 135, 136 & 138 of the Electricity Act, Police Station Kotwali, District Basti was also filed.

It is stated that in the said case the Investigating Officer concluded that there was no theft of electricity and submitted a final report in favour of the petitioner and the said report attained finality as no protest petition was filed by the respondent authorities. More than 10

years have passed but the counter affidavit has not been filed as such the averments made in the writ petition remains un rebutted.

Learned counsel for the petitioner has also drawn our attention towards clause 8.2 (x) (h) of the Electricity Supply Code, 2005 which is as follows:

(x) Cognizance of the offence.

“(a) A complaint in writing relating to the commission of such offence shall be lodged against the consumer or person by the Appropriate Government or the Appropriate Commission or any of their authorized officers in this regard or a Chief Electrical Inspector or an Electrical Inspector or an authorized officer of Licensee or a Generating Company, as the case may be, within 24 hours of disconnection in the Police Station of that area having jurisdiction.

(b) The police shall investigate the matter in accordance with the general law applicable to the investigation of any offence. For the purposes of investigation of the offence under the Act or this Code, the police shall have all the powers as available under the Code of Criminal

Procedure, 1973.

(c) The police shall, after investigation, forward the report along with the F.I.R. lodged under sub-clause (a) above to the Court or trial under the Act. i.e. a Special Court or in absence of a Special Court, any other court.

Provided that the court may also take cognizance of an offence punishable under this Act upon a report of a police officer filed under section 173 of the Code of Criminal procedure, 1973.

(d) Notwithstanding anything contained in sub-clauses (a), (b) and (c) above, the complaint for taking cognizance of an offence punishable under the Act may also be filed by the Appropriate Government or the Appropriate Commission or any of their officer authorized by them or a Chief Electrical Inspector or an Electrical Inspector or an authorized officer of Licensee or a Generating Company, as the case may be directly in the appropriate Court.

(e) Notwithstanding anything contained in the Code of Criminal procedure 1973, every Special Court, or in absence of a

Special Court, any other court, shall take cognizance of an offence referred to in sections 135 to 140 and section 150 of the Act without the accused being committed to it for trial, and such offence shall be cognizable and non-bailable.

(f) The cognizance of the offence under the Act shall not in any way prejudice the actions under the provision of the Indian Penal Code.

(g) The final assessment done by the licensee assessing officer in case of theft, is also subject to adjudication by the court.

(h) In case of the decision of the court that theft is not established, the charges levelled and assessment made by the licensee against the consumer or person shall be withdrawn in writing and the connection shall be restored through the original meter.”

In view of the averments made in the writ petition which are unrebutted read with clause 8.2 (x) (h) of the Electricity Supply Code, we set aside the impugned demand dated 01.12.2008 (Annexure-8 to the writ petition) as well as the citation dated 21.12.2009 (Annexure-6 to the writ petition).

The writ petition stands allowed.

No order as to costs.

Order Date :- 15.5.2019

L.F./4/Puspendra